

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

08/20/2026
Clerk of the Court
BY: SANDRA SCHIRO
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

SUPPLEMENTAL DECLARATION

ISO VEXATIOUS / 391

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; Code of Civil Procedure section 2015.5; and Code of Civil Procedure sections 391 through 391.7 as applicable to the vexatious-litigant relief opposed.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,

1 rules 2.118 and 2.119; this paper does not present any of those grounds.

2 4. The Court's authority to consider the substance is under Code of Civil Procedure sections 391
3 through 391.7 and California Rules of Court, rules 3.1110 and 3.1113.

4 5. This paper is submitted for the August 26, 2026 hearing. It supports the accompanying sup-
5 plemental memorandum. It does not replace my July 21, 2026 declaration.

6 Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

7 I, Franciscus Dylan Rosario, declare:

8 1. I am the plaintiff in this action, appearing self-represented. I have personal knowledge of the
9 facts stated in this declaration, except where stated on information and belief, and if called as
10 a witness I could and would testify competently to them under oath.

11 2. I submit this declaration in support of Plaintiff's Supplemental Memorandum of Points and
12 Authorities in Response to New Matter in Defendant's August 19, 2026 Reply, on Defendant
13 CSAA Insurance Exchange's motion, served July 21, 2026, noticed for August 26, 2026, at
14 9:00 a.m. in Department 302. This declaration does not replace my July 21, 2026 declaration.

15 **I. FIVE-YEAR COURSE; NOTICED FEES; UNPAID BILLS**

16 3. This controversy arises from a February 4, 2021 motor-vehicle collision in San Francisco and
17 from CSAA's subsequent claims handling. I was the plaintiff in *Rosario v. Abdelhalim*, Case
18 No. CGC-21-594102. A defense verdict and judgment were entered. My appeal remains
19 pending as Case No. A173827.

20 4. On information and belief based on CSAA correspondence and later litigation papers, CSAA
21 certified its investigation as "concluded" and denied my claim in February 2021, about 21
22 days after the collision, without obtaining 911 audio, body-worn camera footage, and CAD
23 records. More than five years have elapsed without an adjudication of whether that investiga-
24 tion file was empty at certification.

25 5. While A173827 remained pending, I filed Case No. CGC-25-631801 and this action, Case
26 No. CGC-25-631802 (naming CSAA Insurance Exchange). The personal-injury primary
27 right was freedom from negligent driving. The rights I have pursued against CSAA concern
28 whether CSAA obtained foundational objective evidence before certification and whether

CSAA concealed the emptiness of that file. I do not ask this Court to re-try the personal-injury verdict, to reverse any ruling of Judge Wong, or to decide A173827.

6. As a result of the collision and the medical treatment that followed, I have carried unpaid medical bills. I state that fact only as household financial pressure. I do not ask this Court to redetermine the jury's negligence findings.

7. On information and belief based on Defendant's moving papers, the noticed fee demand in this case is approximately \$32,928.27, and the noticed demand in Case No. CGC-25-631801 is \$35,973.00 in fees plus \$1,137.46 in costs, totaling \$37,110.46. I do not know Defendant's internal defense spend beyond those noticed demands. CSAA is an institutional insurer represented by panel counsel. I am self-represented.

II. WHAT I HAVE ASKED THE COURT TO DECIDE

8. I have sought a determination of CSAA's investigation-file conduct on the merits. I have not filed an action to relitigate the personal-injury judgment against Subhi Abdelhalim on the same negligence primary right. CSAA was not the judgment debtor in CGC-21-594102.

9. The personal-injury judgment is on appeal. The July 1, 2026 order in this case granted a special motion to strike a communication-framed First Amended Complaint. I understand that order to be limited to the pleading as then framed. On July 6, 2026, I emailed Tyler J. O'Connell, Chad S. Tapp, and other Porter Scott personnel stating that limited-scope position and my retained right to pursue unadjudicated institutional-omission theories. A copy appears in Defendant's moving O'Connell declaration as Exhibit 1 and in Plaintiff's Exhibit Index as Exhibit A. The July 21, 2026 motion followed that letter.

9A. On August 14, 2026, I filed a notice of appeal from the July 1, 2026 order in this case through File and ServeXpress, transaction 80347004. The same day I filed a companion notice of appeal in Case No. CGC-25-631801, transaction 80347363, and a notice of automatic stay in Department 302 in this case, transaction 80347745. Appellate case numbers had not been assigned as of the date I signed this declaration. I state these filing facts as a matter of record only.

10. Every paper I have signed and filed I reviewed, adopted, and submitted in good faith to obtain a determination of unadjudicated claims-handling rights. I deny that any filing was submitted

solely to cause unnecessary delay, to harass counsel, or to clog the docket.

III. DOCKET VOLUME; THRESHOLD DOCTRINES; 13A / 13B

11. On April 16, 2026, I filed a Motion for Leave to File Second Amended Complaint. Around that request, Defendant filed three noticed motions: (a) Special Motion to Strike under section 425.16, April 9, 2026; (b) Demurrer, April 13, 2026; (c) Motion to Strike under section 436, April 22, 2026. Defendant opposed leave on April 23, 2026. I later sought leave to file a Third Amended Complaint (April 28, 2026); Defendant opposed on May 12, 2026.

13A. I have encountered, and have had to brief, three recurring defense positions that delayed a file-state determination:

(a) Threshold immunity and privilege. Defendant invoked section 425.16 and Civil Code section 47(b). The July 1, 2026 order applied those doctrines to the First Amended Complaint as then framed. I have treated that order as limited to that framing. My later papers seek adjudication of non-communicative investigation-file facts (whether 911, body-worn camera, and CAD were obtained before certification), not a reversal of July 1.

(b) Characterizations of my papers and research. Defense emails and papers describe my filings and meet-and-confer letters as “AI-generated” or “AI-drafted” and ask that I cease further filings (Plaintiff’s Exhibits G through J, L, M). I reviewed and adopted every paper I signed. I filed notices of authority so the Court would have *JKC3H8* and section 425.17(c). I deny that those characterizations, or my refusal to abandon the papers, constitute section 391(b)(3) abuse.

(c) Lodging of authorities. I lodged *JKC3H8*, section 425.17(c), *Crowley*, *Mycogen*, *Baral*, and *Park* by notice and request for judicial notice because I concluded they were material to whether anti-SLAPP and privilege end the investigation-file controversy. I did not treat those authorities as already adopted by this Department. I do not ask this Department to reverse *Wong* or to decide A173827.

13B. I sought a timely determination on the merits of the investigation-file issues. The papers Defendant counts as volume were, in substantial part, my responses to Defendant’s three noticed motions and to counsel’s April-May 2026 emails demanding withdrawal, a single opposition, and

1 an end to further filings. They were not freestanding filings initiated to harass counsel or the Court.
2 Discovery I have served was directed to claims-file contents and whether foundational evidence
3 was obtained before the February 2021 certification (Plaintiff's Exhibit Index, Exhibit C), not to
4 re-litigating the jury's negligence findings.

5 12. On information and belief, CSAA maintains its principal place of business and conducts claim
6 administration in Contra Costa County. Any discussion of related claims there has been based
7 on that venue connection, not on an intent to evade a particular judicial officer.

8 **IV. CHALLENGED EMAILS ARE NOT COURT FILINGS**

9 13. Defendant's motion and August 19, 2026 reply rely on selected out-of-court emails, including
10 Reply Decl. Exhibit A. Those excerpts are presented as if they were court filings and as if
11 tone were a statutory element of section 391. They are not court filings. I did not file those
12 emails as court papers. I did not intend them as a request for judicial action.

13 14. Defendant's compilation does not categorize emails by function. Email traffic has included:
14 (a) electronic service of papers already being filed or served; (b) scheduling; (c) statutory
15 meet-and-confer, including section 128.7; (d) responses to Defendant's own demands, fee
16 threats, artificial-intelligence pejoratives, cease-filings requests, and an April 30, 2026 state-
17 ment that counsel would move to have me deemed a vexatious litigant; (e) disagreement over
18 the July 1, 2026 order. Sample service and meet-and-confer emails are Plaintiff's Exhibit B.
19 Serve is not file. I have reviewed Reply Decl. Exhibit A. As I read it, PDF pages 4 through
20 50 are correspondence about appeal A173827 and TrueFiling service notices; PDF page 51
21 begins my July 27, 2026 email requesting withdrawal of this motion under section 128.7,
22 subdivision (c)(1); PDF page 55 begins my July 22, 2026 electronic service of papers I had
23 filed or was filing; and the thread beginning at PDF page 81 includes defense counsel's own
24 section 391 meet-and-confer message stating counsel would file a motion. Exhibit A does
25 not state how many emails I sent, over what period, or which ones were left out. It is not a
26 complete corpus.

27 15. The extracted sentences were private correspondence. They expressed opposition to what
28 I understood as an effort to avoid empty-file adjudication, frustration after more than five

1 years, and criticism of Defendant’s refusal to address investigation-file facts. They were not
2 pleadings, motions, or other papers filed with this Court.

3 16. I use computer-assisted drafting aids. I review, adopt, and take responsibility for every paper
4 I sign. I deny that drafting-tool use converts claims-handling advocacy into section 391(b)(3)
5 abuse.

6 **V. DEFENSE EMAILS F THROUGH N**

7 17. Between April 10 and May 5, 2026, I received emails from Tyler J. O’Connell of Porter Scott,
8 already lodged as Plaintiff’s Exhibits F through N: (a) April 10 (Ex. F): withdraw and dismiss
9 with prejudice, with fee and sanctions warnings; (b) April 24 (Exs. G, H, I): “absolutely zero
10 merit” and repeated “AI-generated” / “ChatGPT” characterizations; (c) April 27 (Ex. J): cease
11 copying the Court; (d) April 30 (Ex. K): counsel would move to have me deemed a vexatious
12 litigant; (e) April 30 (Ex. L): confine myself to a “single Opposition”; (f) May 4 (Ex. M):
13 “You cannot continue to submit papers” and “Please cease these additional filings”; (g) May
14 5 (Ex. N): intent to seek an admonishment, including potentially contempt sanctions, if I
15 appeared. I understood those emails as an effort to stop further filings, not as a court order.
16 I declined to dismiss the investigation-file claims with prejudice. I offer Exhibits F through
17 N as evidence of contemporaneous litigation objectives, not as a freestanding claim against
18 counsel.

19 **VI. TONE**

20 18. Defense papers describe discourteous language in certain of my emails. I do not repeat those
21 statements. I do not ask the Court to decide this motion on tone. Any prior tone that fell
22 below professional courtesy is withdrawn. Going forward I will communicate courteously
23 and will confine correspondence to the issues in dispute.

24 19. Except as expressly stated, I do not admit any characterization that my filings, discovery,
25 or correspondence were “frivolous,” “harassing,” or “solely intended to cause unnecessary
26 delay.”

27 I declare under penalty of perjury under the laws of the State of California that the foregoing is

1 true and correct.

2 Executed on August 20, 2026 at Rohnert Park, California.

3 FRANCISCUS DYLAN ROSARIO Declarant

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